

## 25SMCV00572 25SMCV00572

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CASE NAME: Amguard Insurance Co., v. Warner, et al.

CASE NO.: 25SMCV00572

MOTION: Demurrer to the Cross-Complaint

HEARING DATE: 8/21/2026

### LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

## ANALYSIS

Cross-Defendants Jay

Lee and Melrose Auto Repair Corp. demur to Defendant/Cross-Complainant David Warner's Cross-Complaint for indemnification, apportionment of fault, and declaratory relief.

Request for Judicial Notice

Cross-Defendants'

request for judicial notice is GRANTED.

Duty

Cross-Defendants principally argue that the indemnity and apportionment of fault claims are without merit, since the court has already ruled that the main Plaintiffs lack standing to sue the Cross-Defendants. Pursuant to the allegations in the underlying complaint, Cross-Defendants contend that Warner has no contractual relationship with Cross-Defendants. Cross-Defendants only cite general negligence principles. (Civ. Code § 1714; *Nally v. Grace Community Church* (1988) 47 Cal.3d 278, 292.)

In Cross-Defendants'

demurrer to the underlying complaint by Amguard Insurance Co., the Court concluded

that the complaint failed to state a duty between Cross-Defendants and Amguard's third party insureds. There was no special relationship between Cross-Defendants, as inspectors/repairer of the subject vehicle which caused the fire, and the third party residents injured by the fire, since the defective condition of the vehicle which caused the fire did not arise out of any repairs. (See *Seo v. All-Makes Overhead Doors*, (2002) 97 Cal. App. 4th 1193, 1202 [recognizing that an independent contractor repairer may owe a duty to a third party injured by equipment repaired only if (1) the repairer negligently performs the repair causing the third party's injury; (2) the repairer negligently fails to make a requested repair causing the third party's injury; (3) the repairer has contracted with the owner to inspect and maintain the equipment and fails to do so or to do so properly; or (4) the repairer has voluntarily assumed the owner's duty to inspect and maintain the safety of the equipment or undertaken a systematic inspection of the equipment and fails to do so or to do so properly].)

Here, however, there are important distinctions between the duties owed between Cross-Defendants and Cross-Complainant. The cross-parties have an apparent direct relationship according to the underlying allegations. Although unalleged in the Cross-Complaint, Cross-Defendants apparently entered into a contract for repair with Cross-Complainant, and Cross-Complainant relied upon Cross-Defendants' representation that the vehicle was safe to drive. (Compl., ¶¶ 10-15.) Moreover, the Court did not find that Amguard could never state a duty owed to its insureds, and granted leave to amend to add additional facts to state such a duty. Amguard apparently declined to do so, and instead dismissed Cross-Defendants. A duty could still exist between the cross-parties, including a contractual duty to indemnify based on the parties agreement to repair the vehicle. (Ibid.)

That said, equitable indemnity requires some basis for tort liability against the proposed indemnitor, generally based on a duty owed to the underlying plaintiff. (See *BFGC Architects Planners, Inc. v. Forcum/Mackey Construction, Inc.* (2004) 119 Cal.App.4th 848, 852 [equitable indemnity "applies only among defendants who are jointly and severally liable to the plaintiff."].) Unless the prospective indemnitor and indemnitee are jointly and severally liable to the plaintiff there is no basis for indemnity. (*Columbus Line Inc. v. Gray Line Sight-Seeing Companies Associated Inc.* (1981) 120 Cal.App.2d 622, 628.) Likewise, apportionment of fault would also require responsibility of the indemnitor for an injury to the underlying party. (See *Pfeifer v. John Crane, Inc.*

(2013) 220 Cal.App.4th 1270, 1285 [comparative fault allows a jury to consider and evaluate the relative responsibility of various parties for an injury on any legal or equitable theory].) The Cross-Complaint relies on such equitable theories. (CC ¶¶ 7-8.) In light of the ruling on the prior demurrer finding no duty owed between the underlying Plaintiff (and its insureds) and Cross-Defendants, as well as the dearth of factual allegations supporting the Cross-Complaint, the Court will require additional facts be stated to support the claim for equitable indemnity and apportionment of fault.

The declaratory relief fails to state a claim for an additional reason. A declaratory relief complaint must specifically allege that an actual, present controversy exists, and must state the facts of the respective claims concerning the disputed subject matter. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 79.) A complaint will be found sufficient if it sets forth facts showing the existence of an actual controversy relating to the parties' legal rights and duties, and requests the court to adjudge these rights and duties. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 606.) The court may sustain a demurrer to a declaratory relief claim if the complaint fails to allege an actual or present controversy, or that the controversy is not "justiciable" or if it determines that a judicial declaration is not "necessary or proper at the time under all the circumstances." (CCP § 1061; *DeLaura v. Beckett* (2006) 137 Cal.App.4th 542, 545.) As conceded in the opposition, the cross-complaint does not state any facts or request any particular declaration of rights. It simply alleges a conclusion that an actual controversy exists between the parties regarding their respective rights and duties because Warner contends and Cross-Defendants dispute "Roes 1-10, inclusive." (CC ¶ 9.) Presumably, the declaratory relief cause seeks a declaration of rights between the cross-parties vis-à-vis liability to Plaintiff, but the pleading is uncertain on this point.

Accordingly, the demurrer is SUSTAINED with leave to amend as to each cause of action.

Melrose's Demurrer

Melrose individually argues that judicially noticeable facts demonstrate that it was not in existence at the time of the alleged loss. Indeed, the underlying complaint alleged that the loss occurred in February 2023, and Melrose came into existence in 2024. In opposition, Cross-Complainant claims that there may be

successor liability. (See CenterPoint Energy, Inc. v. Superior Court (San Francisco) (2007) 157 Cal.App.4th 1101, 1120 [a successor corporation may be liable for losses incurred prior to their incorporation under certain circumstances, including where the successor corporation is a mere continuation of the predecessor, or the transfer of assets to the successor is for the fraudulent purpose of escaping liability for the predecessor's debts].) However, the cross-complaint offers no facts concerning Melrose's successor status.

Accordingly, the demurrer is SUSTAINED with leave to amend.

Cross-Complainant has 20 days to file an amended cross-complaint.